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***URL.7

☐

This link redirects to a snapshot taken by XXXXXX of the news published at ***URL.8 with a photograph and name of the claimant. Currently, this news has been removed, but the time machine stored a copy of its publication in 2018.

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***URL.9

☐

This link redirects to a snapshot taken by XXXXXX of the news published at ***URL.10 with a photograph of the claimant. Currently, this news has been removed, but the time machine stored a copy of its publication in 2018.

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The URLs 3 and 4 belong to the domains XXXXXX and XXXXXX, both addresses point (resolve) to the same website, a portal whose main functionality is to capture snapshots of external portals on different past dates, storing exact copies of their content (both textual and graphical information). Specifically, the two URLs in the claim point to snapshots taken by this "time machine" of the following external addresses regarding news published by the portal EI ***DIARIO.1 on May 4 and 6, 2018:

***URL.11

***URL.12

It is verified that, despite the fact that currently these last two news articles have been removed from the portal XXXXXXXX, the time machine provided by XXXXXX and XXXXXX had created a copy of this content on past dates, allowing its viewing at later times even after the publication had been removed. On June 2, 2023, a request for collaboration for the removal of the reported content was made to the person responsible for the website ***DOMINIO.1, using the email address ***EMAIL.1. Days later, it was verified that the content had been removed from the internet.

On March 10, 2023, two requests for collaboration were made to proceed with the removal of the reported content directed to the portals XXXXXX and XXXXXX, using the forms provided to report inappropriate content. On March 14, 2023, the removal of the requested content was verified.

On March 14, 2023, the indexing of this same content was detected, but on a new portal that also offers the functionality of a time machine, specifically the WayBack Machine website (XXXXXX), a new request for collaboration for the removal of content was made to the person responsible for this website, using the email address ***EMAIL.2. On March 15, 2023, the removal of this content was confirmed.

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On March 10, 2023, an urgent removal order was sent to the intermediary service provider NETKNOW, SL, requesting the removal of the links published in the forum message created by the user A.A.A., these links redirect to publications indexed by the time machine XXXXXX with news from the portal EI ***DIARIO.1. In parallel, new requests for collaboration for content removal were sent to the portal archive.fo. The urgent removal order was initially notified electronically on March 10, 2023, but this submission expired without accessing its content; subsequently, a new attempt was made via postal mail on March 29, 2023, with the result "Unknown Recipient." However, the requests for collaboration for content removal directed to the portal archive.fo were addressed immediately, leading to the removal of the requested content, and the links from the forum message were also disabled.

On June 2, 2023, a request for information was made to the service provider NETKNOW, S.L requesting identifying information associated with the user A.A.A., as well as the IP address used to log in on the date/time of the publication of the message in the forum. This request expired without

accessing its content. On July 6, 2023, a new attempt at electronic notification was made, which also expired due to the deadline being exceeded for the appearance. On September 15, the last attempt at postal notification was made, with a certified return receipt from Correos dated October 9, 2023, indicating that delivery could not be completed as the recipient was "Unknown."

LEGAL GROUNDS

I

Competence

According to the functions assigned to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Conditions for Consent

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Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

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